

		Defendant which prohibited Malex's sale of the vehicle without Defendant's consent. Plaintiffs further speculate Defendant <i>may have</i> ratified the sale by continuing to accept payment, possibly from the Dealership. However, even if Plaintiffs presented evidence showing Malex authorized the Dealership to sell the vehicle and Defendant continued to accept payments from the Dealership, they fail to cite legal authority showing this would invalidate Defendant's title to the vehicle or allow the Dealership to effectively transfer title to Plaintiffs. Moreover, they fail to rebut Defendant's undisputed evidence it had no knowledge of the purported sale by the Dealership. Under the Full Title Doctrine, Plaintiffs have not shown they obtained title to the vehicle or extinguished Defendant's right to the vehicle which was reflected on the certificate of title. Sale by the Dealership was invalid. Defendant is ORDERED to submit a judgment for the court's signature within 5 days. Clerk to give notice.
14	Marek vs. E & S Ring Management Corp. 30-2024-01446531-CU-PO-CJC	Motion for Summary Judgment Defendants E&S Ring Management Corp. and ZMV Partnership d/b/a Mediterranean Village Costa Mesa's motion for summary judgment as to plaintiff Marzena Marek's Complaint is DENIED. Defendants' Evidentiary Objections to the Declaration of Eris Barillas is SUSTAINED as to Objection No. 5 and OVERRULED as to the remaining. Plaintiff's Request for Judicial Notice is GRANTED. There is a triable issue of material fact on the negligence and premises liability causes of action on whether the trivial defect doctrine applies. (See <i>Cadam v. Somerset Gardens Townhouse HOA</i> (2011) 200 Cal.App.4th 383, 388-389.) Plaintiff has submitted an expert declaration of Eris Barillas, CXL, CPSI, who inspected the subject stairway and found the stairway violated section 3305 of the 1967 Uniform Building Code and ASTM F1637-21, section 7.1.2 (Plaintiff's Additional Disputed Material Facts ("AMF") No. 14-17.) It is the expert's opinion, to a reasonable degree of professional certainty, that the code-violating variations created an unsafe condition that caused and/or contributed to Plaintiff's fall. (AMF No. 20.) Plaintiff also consistently testified at the moment of the fall the staircase "felt kind of different," she could not tell

		whether the step was “wider or ... narrower or ... slippery” but the step felt “shorter” and “uneven,” that “the surface was not equal, was not straight.” (AMF No. 10, 11, 28.) There is also a triable issue of material fact as to whether Defendants had actual or constructive notice (AMF Nos. 7, 23, 25, 30, 32, 33; RJN, Ex. 1) and causation. Plaintiff’s expert, Barillas’ measurements consistent with Plaintiff’s testimony show the code-exceeding riser and tread variations at the bottom of the staircase where Plaintiff fell and opined, to a reasonable degree of professional certainty, that those variations caused and/or contributed to the fall. (AMF Nos. 13-17; 19-20) Lastly, there is a triable issue of material fact as to whether a dangerous condition was open and obvious. (See <i>Jacobs v. Coldwell Banker Residential Brokerage Co.</i> (2017) 14 Cal.App.5th 438, 447.) Plaintiff shows she was injured due to code violations in the risers, treads and handrail heights, dimensional irregularities which as Plaintiff’s expert explains may not be visually obvious and that a pedestrian cannot perceive until they disrupt the user’s gait. (AMF Nos. 13-17, 19-20, 29.) Moving Defendants to give notice.
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